

HARLAN, J., dissenting.

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Apparently the Court, having successfully circumnavigated the issue, has merely returned to the proposition from which it began. A litigant, it seems, will have standing if he is "deemed" to have the requisite interest, and "if you . . . have standing, then you can be confident you are" suitably interested. Brown, *Quis Custodiet Ipsos Custodes?*—The School-Prayer Cases, 1963 Sup. Ct. Rev. 1, 22.

## III.

It seems to me clear that public actions, whatever the constitutional provisions on which they are premised, may involve important hazards for the continued effectiveness of the federal judiciary. Although I believe such actions to be within the jurisdiction conferred upon the federal courts by Article III of the Constitution, there surely can be little doubt that they strain the judicial function and press to the limit judicial authority. There is every reason to fear that unrestricted public actions might well alter the allocation of authority among the three branches of the Federal Government. It is not, I submit, enough to say that the present members of the Court would not seize these opportunities for abuse, for such actions would, even without conscious abuse, go far toward the final transformation of this Court into the Council of Revision which, despite Madison's support, was rejected by the Constitutional Convention.<sup>19</sup> I do not doubt that there must be "some effectual power in the government to restrain or correct the infractions"<sup>20</sup> of

tions in which individual citizens could present for adjudication "generalized grievances about the conduct of government." I take it that the Court, apart from my Brother DOUGLAS, and I are agreed that any such consequence would be exceedingly undesirable.

<sup>19</sup> See 1 M. Farrand, *The Records of the Federal Convention of 1787*, at 21, 97-98, 108-110, 138-140 (1911); 2 Farrand, *id.*, at 73-80.

<sup>20</sup> The Federalist No. 80 (Hamilton).